

Section 6.

SCHEDULE.

Session and Chapter.	Short Title.	Extent of Repeal.
43 & 44 Vict. c. 45 -	The Criminal Law Amendment Act, 1880.	The whole Act.
48 & 49 Vict. c. 69 -	The Criminal Law Amendment Act, 1885.	The first proviso to section 5; the proviso to section 6; section 13 so far as it relates to penalties.
8 Edw. 7. c. 45 -	The Punishment of Incest Act, 1908.	Section 5.
2 & 3 Geo. 5. c. 20 -	The Criminal Law Amendment Act, 1912.	Subsection (2) and (3) of section 4.

CHAPTER 57.

An Act to make further provision with respect to the qualifications of persons proposing to become or to practise as Solicitors. [4th August 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Conditions
of exemp-
tion from
preliminary
examination.
40 & 41 Vict.
c. 25.

1.—(1) A certificate of having passed a preliminary examination under the Solicitors Act, 1877, shall not be required from any person who has—

- (a) taken a degree, other than a honorary degree, in arts or law at any university to which this Act applies; or
- (b) passed the examination in responsions at Oxford, or the previous examination at Cambridge, or the matriculation or other corresponding examination at any other university to which this

Act applies, or any examination accepted by any such university as exempting from those examinations; or

(c) been called to the degree of utter barrister in England.

(2) The Board of Education, after consultation with the Law Society and with the concurrence of the Lord Chancellor, the Lord Chief Justice, and the Master of the Rolls, or any two of them, may by order make regulations adding to the examinations, the passing of which exempts from the preliminary examination and prescribing, if it appears necessary, the conditions and standards to be complied with in connection with any examination which may be so added, and on the making of any such order this section shall have effect accordingly.

(3) Any disputed question as to whether an examination is for the purposes of this section an examination corresponding to the matriculation examination shall be decided by the Board of Education.

(4) As respects universities and examinations in Scotland, the powers conferred by this section on the Board of Education shall be exerciseable by the Scottish Education Department.

(5) The Solicitors Act, 1877, shall have effect as though the foregoing provisions of this section were substituted for section ten thereof, but a certificate of having passed a preliminary examination shall not be required from any person who before or within five years after the passing of this Act has taken any of the degrees or passed any of the examinations referred to in that section (as amended by any other enactment) or in any regulations made under that section.

2.—(1) A person articled to a solicitor after the thirty-first day of December, one thousand nine hundred and twenty-two, shall not be admitted to the final examination, unless he satisfies the Law Society that he has during a period of one year, such period being continuous or subject to such intervals as the Society may think reasonable, complied with the requirements of the Society as to attendance at a course of legal education at a law school provided or approved by the Society:

Conditions
of admit-
tance to final
examination.

Provided that—

(a) the Society shall exempt any person wholly or partially from the provisions of this section

if satisfied that the attendance at any such course of education as aforesaid was for geographical or other reasons impracticable; and

(b) any person may appeal to the Master of the Rolls in accordance with rules made by the Master of the Rolls against the refusal of the Society to approve any law school for the purposes of this section, or to exempt any person from the provisions of this section, and the decision of the Master of the Rolls shall be final and binding on the Society.

(2) The Society shall supply a list of law schools provided or approved by them for the time being to—

(a) any person applying for the same; and

(b) any person articled to a solicitor as soon as may be after his articles are registered.

(3) The provisions of this section shall not apply to any person who proves to the satisfaction of the Law Society, or, on appeal, to the satisfaction of the Master of the Rolls that he has taken a degree at any of the universities to which this Act applies after passing a final examination in law at that university, or to any person who applies to be admitted to the Law Society's final examination after satisfying the requirements contained in section four of the Solicitors Act, 1860.

23 & 24 Vict.
c. 127.

(4) Notwithstanding anything contained in this Act, the Law Society shall continue to conduct their examinations previous to the admission of solicitors independently of any school of law, and the teaching staff of any law school provided by the Society shall not take any part in any such examinations.

Power of
judges to
provide for
admission
in certain
cases after
four years'
service.

3.—(1) The Master of the Rolls, with the concurrence of the Lord Chancellor and the Lord Chief Justice or one of them, may make regulations directing that any person having passed any examination held in or by any university to which this Act applies, or in or by any college or educational institution specified in the regulations, and having passed the intermediate and final examinations under the Solicitors Act, 1877, may be admitted and enrolled as a solicitor after service under articles of clerkship to a practising solicitor for the term of four years, but not so as to allow in any case a less term of service than four years.

(2) The Solicitors Act, 1877, shall have effect as though the foregoing provisions of this section were substituted for section thirteen thereof.

4. Section two of the Solicitors Act, 1860 (which enables persons who have taken degrees at certain universities to be admitted after three years' service) shall have effect as though—

Amendment
of s. 2 of
23 & 24 Vict.
c. 127.

(a) any reference to a degree of Bachelor of Arts included a reference to a degree of Bachelor of Science; and

(b) the universities to which this Act applies were substituted for the universities referred to in that section.

5. A person, whether bound under articles of clerkship for five, four, or three years, who has duly served his clerkship in accordance with the provisions of the Solicitors Acts, 1839 to 1919, and this Act, and has duly complied with the provisions of this Act, shall be at liberty to present himself for final examination and be examined at the examination next preceding the expiration of his term of service under articles of clerkship, or at any subsequent examination.

Time for
taking final
examination.

6. Section sixteen of the Solicitors Act, 1888 (which authorises the registrar of solicitors to refuse to issue certificates in certain cases) shall apply to a solicitor who, being an undischarged bankrupt, applies for a first certificate to practise.

Application of
51 & 52 Vict.
c. 65, s. 16 to
solicitors
applying for a
first certificate
to practise.

7. The Master of the Rolls, with the concurrence of the Lord Chancellor and the Lord Chief Justice, or one of them, may make general regulations for the purposes of the execution of the Solicitors Act, 1888 (as amended by any subsequent enactment, including this Act) with respect to articles of clerkship, admission as a solicitor, or the grant or renewal of a certificate to practise.

Power to
make rules
for the pur-
poses of the
Solicitors
Act, 1888.

8. The fee payable under section twenty of the Solicitors Act, 1860, in respect of the issue of the registrar's certificate shall be one pound instead of five shillings, and that section shall have effect accordingly, and the proceeds of any increase in the fee under this section shall be applied by the Law Society in such manner as they think fit towards the expenses of the Society's school

Fee for
registrar's
certificate.
23 & 24 Vict.
c. 127.

in London, and making grants to approved law schools elsewhere.

Universities
to which the
Act applies.

9. This Act applies to any university which, at the time of the passing of this Act, is entitled to representation in the House of Commons, whether alone or jointly with any other university :

Provided that the Board of Education, after consultation with the Law Society and with the concurrence of the Lord Chancellor, the Lord Chief Justice and the Master of the Rolls, or any two of them, may by order add any university in the United Kingdom to the universities to which this Act applies, and, on the making of any such order, this Act shall have effect accordingly.

Short title,
repeal and
saving.

10.—(1) This Act may be cited as the Solicitors Act, 1922, and the Solicitors Acts, 1839 to 1919, and this Act may be cited together as the Solicitors Acts, 1839 to 1922.

(2) The enactments referred to in the Schedule to this Act are hereby repealed to the extent specified in the third column of that schedule.

Section 10.

SCHEDULE.

Session and Chapter.	Short Title.	Extent of Repeal.
6 & 7 Vict. c. 73.	The Solicitors Act, 1843.	In section three the words "and " also unless such person " shall after the expiration of " the said term of five years " have been examined in " the manner hereinafter " directed."
23 & 24 Vict. c. 127.	The Solicitors Act, 1860.	Sections five and twelve.
40 & 41 Vict. c. 25.	The Solicitors Act, 1877.	Sections ten and thirteen.
8 Edw. 7. c. 38	The Irish Universities Act, 1908.	Section twelve so far as it amends section ten of the Solicitors Act, 1877.